

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ('Agreement') is made effective as of **December 1, 2026**, by and between **Apex Innovations Corp**, a Massachusetts corporation, and **Quantum BioTech Systems Ltd**, a UK limited company. Each party may disclose or receive proprietary technical and commercial data for the purpose of evaluating a joint strategic product partnership ('Authorized Purpose').

1. CONFIDENTIAL INFORMATION

1.1 Scope. 'Confidential Information' refers to any non-public technical data, source code, clinical test results, customer lists, and financial forecasts disclosed in oral or written form and marked as confidential.

2. OBLIGATIONS OF NON-DISCLOSURE

2.1 Standard of Care. The receiving party agrees to hold all Confidential Information in strict confidence and not to disclose such information to any third party without prior written consent of the disclosing party.

MUTUAL NON-DISCLOSURE AGREEMENT (Continued)

3. SURVIVAL PERIOD AND RETURN OF MATERIALS

3.1 Five-Year Survival. The obligations of confidentiality under this Agreement shall survive for five (5) years following the date of initial disclosure, except that trade secrets shall remain confidential indefinitely.

3.2 Return or Destruction. Within fourteen (14) calendar days after receiving written request from the disclosing party, the receiving party shall return or certify destruction of all documents and tangible items containing Confidential Information.

4. NON-SOLICITATION

4.1 Employee Covenant. For a period of twelve (12) months following the Effective Date, neither party shall solicit or induce any technical employee of the other party to terminate their employment.

5. GOVERNING LAW

5.1 Jurisdiction. This Agreement shall be governed by the laws of the Commonwealth of Massachusetts.